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12.	<i>In re Frank L. Williams</i> 2026-01582239	Before the court is the petition by petitioner Cynthia Tauler (Petitioner) for a court order compelling compliance with advanced healthcare directive. Specifically, Petitioner seeks an order directing Memory Garden Memorial Park (Memory Garden) to comply with her instruction to bury the remains of decedent Frank L. Williams (Decedent) pursuant to her authority as the designated agent under Decedent's

		advanced health care directive, and over the objection of respondent Jay Allen Williams (Respondent). As set forth more fully below, the petition is GRANTED. If a decedent has not provided for his interment by will or other written direction, the right to control disposition of the decedent's remains, the location and conditions of interment, and the arrangements for funeral goods and services belongs exclusively to decedent's fiduciary and/or certain surviving relatives in statutory order of priority. (Health & Safety Code § 7100; <i>Spates v. Dameron Hosp. Ass'n</i> (2003) 114 Cal.App.4th 208, 222.) Priority to the right to control descends first on the agent designated to make health care decisions pursuant to Probate Code section 4600 et. seq. (Health and Safety Code § 7100, subd. (a)(1).) If there is no health care agent, the right passes to decedent's competent surviving relatives—first, to the surviving spouse or registered domestic partner; then to the surviving children, parents, siblings or next of kin under the laws of succession. (Health & Safety Code § 7100, subds. (a)(2)-(6).) Petitioner produced the advanced health care directive (AHCD) signed by Decedent on February 11, 2025, showing Petitioner is his designated health care agent and he granted her the authority to direct the disposition of his remains. Petitioner also has produced contracts Decedent entered into with Memory Garden in January 2025 providing for his burial along with his wife who predeceased him. Respondent contends he is Decedent's son, but does not assert the right to control disposition of Decedent's remains. Rather, Respondent contends the validity of the AHCD is disputed in a separate, pending probate proceeding and objects to Petitioner's authority to act. Respondent contends the AHCD is part of a larger packet of estate planning documents that he is challenging in separate probate court proceedings on a variety of grounds. Respondent contends this petition should be delayed or denied until his challenges to the various documents are determined. He also asserts he has proposed delaying Decedent's burial until he has had time to arrange and pay for a private autopsy of Decedent. According to Respondent, the autopsy is needed to support his challenges in probate court. Finally, Respondent contends that allowing Petitioner to direct the disposition of Decedent's remains will effectively validate the AHCD and other documents.
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		Respondent, however, presents no authority that merely filing a challenge in probate court suspends Petitioner's authority under the AHCD. Moreover, Respondent has not shown he has taken any action in probate court to suspend any of Petitioner's powers. Respondent also has not presented any evidence to this court showing any basis for challenging the AHCD. Allowing Petitioner to direct the disposition of Decedent's remains consistent with the contracts Decedent signed with Memory Garden will not validate Decedent's various estate planning documents. Finally, Decedent passed away on or about June 12, 2026, and although Respondent claims the petition should be denied or delayed to allow him to arrange for an autopsy of Decedent, Respondent has failed to show he has taken any steps to do so in the more than six weeks that have elapsed since Decedent's death. In short, Respondent simply has failed to present any authority or evidence to support his opposition to this petition. Based on the foregoing, the petition is GRANTED, and Petitioner may submit a proposed order providing for the disposition of Decedent's remains consistent with his wishes expressed in the contracts he signed with Memory Garden. As Petitioner conceded in her reply, that does not include cremation, and the order shall so provide. The request for judicial notice Petitioner submitted with the reply is DENIED. New evidence generally may not be presented with the reply, and Petitioner failed to establish any good cause for doing so in this case. Petitioner's counsel is ordered to give notice of this ruling.
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